

MASTER SERVICES AGREEMENT

This Master Services Agreement (the "Agreement") is entered into as of March 3, 2026 (the "Effective Date") by and between Northwind Analytics Ltd., a fictional company organized under the laws of the State of Delaware ("Provider"), and Contoso Logistics LLC, a fictional limited liability company organized under the laws of the State of Washington ("Customer"). Provider and Customer are each a "Party" and together the "Parties." This document is a synthetic fixture created for software testing; it is not a real agreement and does not describe real entities.

1. Services

Provider shall deliver the data-pipeline integration and reporting services described in one or more mutually executed statements of work (each an "SOW"). Provider shall perform the Services in a professional and workmanlike manner consistent with generally accepted industry standards. Deliverables are accepted upon Customer's written approval or thirty (30) days after delivery if no rejection notice is received, whichever occurs first.

2. Term and Termination

The initial term of this Agreement is twenty-four (24) months from the Effective Date, renewing automatically for successive twelve (12) month periods unless either Party gives written notice of non-renewal at least sixty (60) days before the end of the then-current term. Either Party may terminate for material breach upon thirty (30) days written notice if the breach remains uncured. Customer may terminate for convenience upon ninety (90) days written notice, subject to payment of fees for Services performed through the termination date plus a wind-down fee equal to fifteen percent (15%) of the average monthly fees of the prior quarter.

3. Fees and Payment

Customer shall pay Provider a base subscription fee of \$18,500 per month, plus usage fees of \$0.042 per processed record above the monthly included volume of two million (2,000,000) records. Invoices are issued monthly in arrears and are payable net forty-five (45) days. Late amounts accrue interest at one percent (1%) per month or the maximum rate permitted by law, whichever is lower. Fees increase by no more than four percent (4%) per renewal term with sixty (60) days prior notice.

4. Service Levels

Provider shall maintain 99.5% monthly platform availability, measured excluding scheduled maintenance windows announced at least seventy-two (72) hours in advance. If availability falls below 99.5% in a calendar month, Customer is entitled to a service credit of five percent (5%) of that month's base fee per full percentage point of shortfall, capped at fifty percent (50%) of the monthly base fee. Service credits are Customer's sole and exclusive remedy for availability shortfalls.

5. Data Protection

Each Party shall comply with applicable data-protection laws. Provider shall process Customer personal data only on documented instructions, maintain administrative, physical, and technical safeguards no less protective than industry standard, and notify Customer of a confirmed security incident affecting Customer data without undue delay and in no event later than seventy-two (72) hours after confirmation. Provider shall not retain Customer data more than ninety (90) days after termination, except as required by law.

6. Intellectual Property

Each Party retains all right, title, and interest in its pre-existing intellectual property. Provider grants Customer a non-exclusive, non-transferable license to use the deliverables for Customer's internal business purposes during the term. Customer grants Provider a limited license to process Customer data solely to provide the Services. Feedback may be used by Provider without restriction, provided it contains no Customer Confidential Information.

7. Confidentiality

Each Party shall protect the other Party's Confidential Information with at least the same degree of care it uses for its own similar information, and no less than reasonable care, and shall use it solely to perform under this Agreement. Confidentiality obligations survive for five (5) years after termination, and for trade secrets, for as long as trade-secret protection subsists.

8. Limitation of Liability

EXCEPT FOR BREACHES OF SECTION 7, INDEMNIFICATION OBLIGATIONS, OR A PARTY'S GROSS NEGLIGENCE OR WILLFUL MISCONDUCT, NEITHER PARTY'S AGGREGATE LIABILITY ARISING OUT OF OR RELATED TO THIS AGREEMENT SHALL EXCEED THE FEES PAID OR PAYABLE BY CUSTOMER IN THE TWELVE (12) MONTHS PRECEDING THE EVENT GIVING RISE TO THE CLAIM. NEITHER PARTY IS LIABLE FOR INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES, OR FOR LOST PROFITS OR REVENUES.

9. Indemnification

Provider shall defend and indemnify Customer against third-party claims alleging that the Services infringe a valid patent, copyright, or trademark, and shall pay resulting damages finally awarded, provided Customer promptly notifies Provider and grants sole control of the defense. Customer shall defend and indemnify Provider against third-party claims arising from Customer data or Customer's use of the Services in violation of law or this Agreement.

10. General

This Agreement is governed by the laws of the State of Delaware, excluding its conflict-of-laws rules. Neither Party may assign this Agreement without the other Party's prior written consent, except to a successor in a merger or sale of substantially all assets. Notices must be in writing to the addresses stated in the applicable SOW. This Agreement, together with its SOWs, is the entire agreement of the Parties regarding its subject matter and supersedes all prior discussions. Amendments must be in a writing signed by both Parties.